

5.13.6 Public prior use

a) No consideration of late-filed evidence of public prior use

The boards began early on in their case law to set strict standards for the admissibility of late-filed evidence of public prior use by the opponent. On the basis of Art. 114(2) EPC 1973, they refused to include late-filed evidence in the proceedings where, in the specific circumstances, there had been an abuse of procedure and a breach of the principle of good faith. In such cases they chose to refrain from examining the **potential relevance** of the submission (see T 17/91; T 534/89, OJ 1994, 464 and T 211/90). In T 985/91 the board took the view, with reference to T 17/91, that late-filed documents should only be admitted into the proceedings under certain circumstances if they related to alleged prior use.

In T 17/91 an allegation of prior use based on the opponents' own activities had been filed two years after the expiry of the opposition period, with no good reason for the delay. This, in the board's view, constituted an abuse of the proceedings and a breach of the principle of good faith. Irrespective of its potential relevance, the allegation was therefore to be disregarded under Art. 114(2) EPC 1973.

Taking a similar line, the board ruled in T 534/89 (OJ 1994, 464) that an objection based on prior use by the opponents themselves which was raised only after the expiry of the opposition period, although the factual circumstances were known to the opponents, constituted an abuse of procedure.

In T 691/12 the board observed that a prior-use allegation first submitted in the appeal proceedings could not be admitted and considered as prior art unless it met at least the following three conditions: (a) it did not involve an evident abuse of procedure; (b) the prior use as alleged had prima facie to be so relevant that it cast doubt on the validity of the patent; and (c) the prior use had to be fully proven, requiring no further investigation to establish its nature or context. In the case in point these conditions were not met (see also T 1847/12, T 63/13).

In T 2393/13 the board decided to disregard an unsubstantiated allegation of prior use. Under Art. 12(4) RPBA 2007, facts and evidence not only had to be submitted at the appropriate time; they also had to meet the requirements in Art. 12(2) RPBA 2007, i.e. they had to be complete. See also T 380/00 (inadequately substantiated assertion of a non-confidential disclosure in a job interview).

In T 481/99 the board said that the principle that late-filed facts, evidence and related arguments should only exceptionally be admitted into the proceedings by the opposition division (see e.g. G 9/91, OJ 1993, 408 and T 1002/92, OJ 1995, 605) did not imply that a late-filed allegation of prior use, which would be relevant if proven, was to be automatically disregarded on the ground that the new facts first needed to be established by taking evidence. However, if the submissions and/or documents relating to the late allegation of prior use showed inconsistencies or even contradictions, the deciding body was entitled

to disregard the alleged prior use pursuant to Art. 114(2) EPC 1973 without further enquiries.

On the issue of documents relating to prior use submitted during appeal proceedings, the board in T. 508/00 ruled that poor communications within a company or a group of subsidiary companies did not constitute adequate and acceptable grounds for allowing the late submission of evidence concerning alleged prior use (see also T. 443/09).

The board in T. 1914/08 similarly refused to accept financial difficulties a party claimed to have experienced in the intervening period as justification for the late filing of previously announced – and so available – documents.

In T. 450/13 the board stated that not substantiating a public prior use in opposition proceedings but attempting to substantiate it in the statement of grounds of appeal could lead to the inadmissibility of such a line of attack under Art. 12(4) RPBA 2007.

Likewise in T. 444/09, T. 12/11, T. 1835/11, T. 1295/12, T. 1841/14 and T. 2361/15 no account was taken of a public prior use alleged for the first time in appeal proceedings.

b) Consideration of late-filed evidence of public prior use

In T. 628/90 an allegation of public prior use, which was filed for the first time in appeal proceedings and was adequately substantiated, was taken into account because of its possible relevance to enable thorough consideration to be given to the patentability of the subject-matter of the contested patent (see also T. 150/93, T. 947/99). However, see also T. 552/18, in which it was considered that, since that decision had been taken before the RPBA 2007 entered into force, it was no longer relevant.

In T. 947/99 the appellant submitted with regard to the circumstances of the late claim concerning public prior use that he had only become aware of the possibility that there might have been public prior use in the course of proceedings conducted in parallel before the Patents Court in London at a meeting. In the board's opinion, the appellant had given a very clear explanation and sound reasons as to why the claim of public prior use had been made and why it could not have been made any earlier.

In T. 571/08, the board held that documents submitted by the appellant to support a new prior use, as part of a challenge to one of a set of new auxiliary requests filed shortly before the oral proceedings before the opposition division, had not been filed belatedly. The appellant had, in response to the opposition division's decision to allow this auxiliary request, filed the documents with its notice of appeal.

5.13.7 Admission of submissions relating to Article 55(1)(a) EPC

In T. 1682/15, with the statement of grounds of appeal, the appellant (patent proprietor), for the first time, requested that D(28) be disregarded, since its disclosure was due to an evident abuse within the meaning of Art. 55(1)(a) EPC. The submissions were not presented before the opposition division, although D(28) had been filed by the opponent

with its notice of opposition and, throughout the opposition proceedings, D(28) was considered to be highly pertinent. Moreover, all the evidence filed by the appellant in support of the alleged evident abuse lay within its own knowledge and sphere and had already been available to it when D(28) was first cited in the opposition proceedings. Accordingly, the board could not see any reason which could have prevented the appellant from already presenting its submissions concerning an evident abuse during the opposition proceedings (Art. 12(4) RPBA 2007).

6. Parallel proceedings

The board in T 18/09 stressed that, in the case of parallel proceedings before a national court and the boards of appeal, parties should inform both tribunals of the position as early as possible and ask the appropriate tribunal for acceleration in order to avoid duplication of proceedings. Whether acceleration is requested by one party, or both or all parties in agreement, or by a national court, all parties must accept a strict procedural framework including short time limits. It must also be understood that acceleration can have no effect on the equal treatment of all parties and cannot confer any advantage on any one party.

7. Termination of appeal proceedings

7.1. Closure of the substantive debate

Art. 15(5) RPBA 2020 (unchanged) reads: "When a case is ready for decision during oral proceedings, the Chair shall state the final requests of the parties and declare the debate closed. No submissions may be made by the parties after the closure of the debate unless the Board decides to re-open the debate."

According to the established practice, the closing of the debate marks the last moment in the oral proceedings at which parties can still make submissions.

As long ago as T 595/90 (OJ 1994, 695) it was noted that submissions filed after closure of the debate could not be taken into account unless the board decided to reopen the debate.

In T 577/11 the board stated that as to the significance of the closing of the debate, the Enlarged Board of Appeal confirmed in G 12/91 (OJ 1994, 285) that, once the debate has been closed, further submissions by the parties must be disregarded unless the department allows the parties to present comments within a fixed time limit or decides to re-open oral proceedings for further substantive debate of the issues. These considerations of principle equally apply to proceedings before the boards of appeal (cf. R 10/08, R 14/10). Hence, the closing and also, as a rule, the re-opening of the debate are at the board's discretion.

7.1.1 Decision taken as the file stands

In T 784/91 the board took the view that if in ex parte proceedings the appellant indicated that he did not wish to comment on the case, this could be construed as signifying agreement to a decision being taken on the case as the file stood. See also T 230/99.

7.1.2 Proceedings after delivery of the decision

In T 843/91 (OJ 1994, 818) it was stated that once a decision had been taken the board was no longer empowered or competent to take any further action apart from drafting the written decision (see also T 296/93, OJ 1995, 627, where the board disregarded statements filed after the announcement of the decision, and T 515/94). In T 304/92 the respondent's request to file new claims after the chairman had announced the board's decision was rejected, but recorded (with the response) in the summary of facts.

However, in T 212/88 (OJ 1992, 28) a request for apportionment of costs submitted after the substantive decision had been announced at the end of the oral proceedings had been, exceptionally, admitted. In T 598/92 an error in a claim was corrected at the request of the appellant one day after the decision was delivered at the end of oral proceedings.

After the board in T 1518/11 had announced its decision to dismiss the appeal against the refusal of the application in suit and closed the oral proceedings, the appellant stated by letter that the appeal was withdrawn. However, since the decision had already been announced at the oral proceedings and thereby became effective on that day, the appeal proceedings had already terminated (following T 843/91, OJ 1994, 818) and the appellant's submission made after the announcement of the board's decision was without any legal effect. Furthermore, a statement of withdrawal of appeal made by the (sole) appellant after the final decision of the board had been announced at oral proceedings did not relieve the board of its duty to issue the decision in writing, setting out the reasons for the decision, and notify the appellant of it (following T 1033/04). See also T 2264/18.

7.2. Interlocutory decisions of a board

The boards issue interlocutory decisions on the admissibility of the appeal (T 152/82, OJ 1984, 301), on re-establishment in respect of the time limits for appeal (T 315/87 of 14 February 1989 and T 369/91, OJ 1993, 561), on the admissibility of an opposition (T 152/95 of 3 July 1996), and to inform the public rapidly (pending the final decision) that a mention of grant in the European Patent Bulletin was incorrect because of the appeal's suspensive effect (J 28/94, OJ 1995, 742). Referral of a point of law to the Enlarged Board is also an interlocutory decision.

7.3. Withdrawal of the appeal

Under the EPC it is possible to withdraw a patent application, opposition or appeal. Decision J 19/82 (OJ 1984, 6) ruled that partial withdrawal is also possible.

7.3.1 Article 114(1) EPC and withdrawal of the appeal

Under Art. 114(1) EPC the EPO shall examine the facts of its own motion in proceedings before it. The question has arisen whether this is relevant in the event of the withdrawal of the appeal.

In G 7/91 and G 8/91 (OJ 1993, 346 and 356) the Enlarged Board of Appeal ruled that as far as the substantive issues settled by the contested decision at first instance were concerned, appeal proceedings – whether ex parte or inter partes – were terminated when the sole appellant withdrew his appeal. The Enlarged Board found that the provision of Art. 114(1) EPC 1973 did not allow for continuation of the proceedings once the appeal had been withdrawn. This was evident from the legislative rationale of the EPC. If Art. 114(1) EPC 1973 applied to all withdrawal situations, then the R. 60(2) EPC 1973 (R. 84 EPC) exception for oppositions would be superfluous. Nor was withdrawal of the appeal covered by "relief sought" within the meaning of Art. 114(1), second part of sentence, EPC 1973 to which the EPO would not be restricted in examining the facts; it constituted a procedural act not requiring the consent of the relevant board (point 8 of the Reasons). The appeal procedure was that proper to an administrative court, so any exception from general procedural principles such as the "principle of party disposition" had to be supported by much weightier grounds than in administrative proceedings. Neither Art. 114(1) EPC 1973 nor the interests of the general public or the respondent constituted arguments against this interpretation. Art. 114(1) EPC 1973 was restricted to the examination of the facts. The interests of the general public were primarily safeguarded by the opposition system. It could be assumed that the patent did not disturb those who had not filed an opposition, so there was no need to continue the appeal proceedings in order to safeguard their interests. Nor were the respondents' interests any more in need of protection if they had not themselves filed an appeal, as was explained in detail in G 2/91 (OJ 1992, 206). Finally, the Enlarged Board pointed out that when the sole appellant withdrew his appeal, the suspensive effect of the appeal lapsed and the opposition division's decision thus became final as regards the substantive issue.

7.3.2 Board's powers to decide on issues after withdrawal of the appeal

If the sole appellant says he has withdrawn his appeal, but the parties are in dispute as to whether he did so admissibly, then the board is empowered to rule on that issue (T. 659/92, OJ 1995, 519).

After withdrawal of an appeal it is still permissible to decide on ancillary questions (T. 85/84). Thus in J 12/86 (OJ 1988, 83), T. 41/82 (OJ 1982, 256) and T. 773/91, the board of appeal dealt with requests for reimbursement of the appeal fee filed after withdrawal of the appeal, and in T. 117/86 (OJ 1989, 401), T. 323/89 (OJ 1992, 169), T. 614/89 and T. 765/89 with requests for apportionment of costs.

In T. 333/20, the board observed that a withdrawal of the appeal brought the proceedings to a close as regards the substantive merits of the appeal case itself but not as regards requests relating to issues not settled by the withdrawal. The request for reimbursement of the appeal fee filed by the appellant on withdrawing the appeal was therefore not